

## BOOK I

I INTEND to examine whether, in the ordering of society, there can be any reliable and legitimate rule of administration, taking men as they are, and laws as they can be. I shall try, throughout my enquiry, to combine what is allowed by right\* with what is prescribed by self-interest, in order that justice and utility should not be separated.

I begin my discussion without proving the importance of my subject. People will ask me whether I write on politics because I am a ruler or a legislator. I answer that I am not; and that is the reason why I write on politics. If I were a ruler or legislator, I should not waste my time saying what ought to be done; I should do it, or hold my peace.

I was born a citizen of a free state and a member of its sovereign body,\* and however weak may be the influence of my voice in public affairs, my right to vote on them suffices to impose on me the duty of studying them. How happy I am, each time that I reflect on governments, always to find new reasons, in my researches, to cherish the government of my country!

### Chapter i

#### *The Subject of the First Book*

MAN was born free,\* and everywhere he is in chains. There are some who may believe themselves masters of others, and are no less enslaved than they. How has this change come about? I do not know. How can it be made legitimate? That is a question which I believe I can resolve.

If I were to consider force alone, and the effects that it produces, I should say: for so long as a nation is constrained to obey, and does so, it does well; as soon as it is able to throw off its servitude, and does so, it does better; for since it regains freedom by the same right that was exercised when its freedom

was seized, either the nation was justified in taking freedom back, or else those who took it away were unjustified in doing so. Whereas the social order is a sacred right, and provides a foundation for all other rights. Yet it is a right that does not come from nature; therefore it is based on agreed conventions. Our business is to find out what those conventions are. Before we come to that, I must make good the assertion that I have just put forward.

## **Chapter ii**

### *The First Societies*

THE most ancient of all societies, and the only one that is natural, is the family. Even in this case, the bond between children and father persists only so long as they have need of him for their conservation. As soon as this need ceases, the natural bond is dissolved. The children are released from the obedience they owe to their father, the father is released from the duty of care to the children, and all become equally independent. If they continue to remain living together, it is not by nature but voluntarily, and the family itself is maintained only through convention.\*

This shared freedom is a result of man's nature. His first law is his own conservation, his first cares are owed to himself; as soon as he reaches the age of reason, he alone is the judge of how best to look after himself, and thus he becomes his own master.

If we wish, then, the family may be regarded as the first model of political society: the leader corresponds to the father, the people to the children, and all being born free and equal, none alienates his freedom except for reasons of utility. The sole difference is that, in the family, the father is paid for the care he takes of his children by the love he bears them, while in the state this love is replaced by the pleasure of being in command, the chief having no love for his people.

Grotius denies that all human power is instituted for the benefit of the governed.\* He cites slavery as an example; his

commonest mode of reasoning is to base a right on a fact.<sup>1</sup> A more logical method could be employed, but not one that is more favourable to tyrants.

It is therefore doubtful, following Grotius, whether the human race belongs to a hundred or so men, or whether these hundred men belong to the human race, and he seems inclined, throughout his book, towards the former opinion. This is Hobbes's view also.\* Behold then the human race divided into herds of cattle, each with its chief, who preserves it in order to devour it.

'As a shepherd is of a nature superior to that of his flock, so too the shepherds of men, their chiefs, are of a nature superior to their peoples'—this argument, according to Philo, was used by the Emperor Caligula;\* who would conclude (correctly enough, given his analogy) either that kings were gods or that the people were animals.

The reasoning employed by this Caligula amounts to the same as that of Hobbes and Grotius. Aristotle\* too had said, earlier than any of them, that men are not naturally equal, but that some are born for slavery and some for mastery.

Aristotle was right, but he took the effect for the cause. Any man who is born in slavery is born for slavery; there is nothing surer. Slaves in their chains lose everything, even the desire to be rid of them; they love their servitude, like the companions of Odysseus, who loved their brutishness.<sup>2</sup> If there are slaves by nature, it is because slaves have been made against nature. The first slaves were made by force, and they remained so through cowardice.

I have said nothing of King Adam or of the Emperor Noah, the father of three great monarchs who shared the universe among themselves, like the children of Saturn, with whom they have been identified.\* I hope that my restraint in this respect will be appreciated; for, being descended directly from one or

<sup>1</sup> 'Learned researches on political law are often no more than the history of former abuses, and it is misguided diligence to take the trouble of studying them too deeply'—from the manuscript *Treatise on France's interests as regards her neighbours*, by the M. d'A.\* This is exactly what Grotius did.

<sup>2</sup> See a short treatise by Plutarch,\* entitled *That animals employ reason*.

other of these princes, and maybe from the senior branch of the family, who knows but that, if my entitlement were verified, I might not find that I am the legitimate king of the human race? However that may be, it cannot be denied that Adam was sovereign over the world, like Crusoe on his island, for so long as he was the sole inhabitant; and the advantage of this form of rule was that the monarch, firm on his throne, had neither rebellions, nor wars, nor conspirators to fear.

### **Chapter iii**

#### *The Right of the Strongest*

THE stronger party is never strong enough to remain the master for ever, unless he transforms his strength into right, and obedience into duty. This is the source of the 'right of the strongest', a right which people treat with apparent irony\* and which in reality is an established principle. But can anyone ever explain the phrase? Force is a physical power; I do not see how any morality can be based on its effects. To yield to force is an act of necessity, not of consent; at best it is an act of prudence. In what sense can it be a duty?

Let us suppose for a moment that this alleged right is valid. I say that the result would be completely senseless. For as soon as right is founded on force, the effect will alter with its cause; any force that is stronger than the first must have right on its side in its turn. As soon as anyone is able to disobey with impunity he may do so legitimately, and since the strongest is always right the only question is how to ensure that one is the strongest. But what kind of a right is it that is extinguished when that strength is lost? If we must obey because of force we have no need to obey out of duty, and if we are no longer forced to obey we no longer have any obligation to do so. It can be seen therefore that the word 'right' adds nothing to force; it has no meaning at all here.

'Obey the powers that be'.\* If this means: 'Yield to force', it is a sound precept, but superfluous; I can guarantee that it will never be violated. All power is from God, I admit; but all

disease is from God also. Does that mean we are forbidden to call the doctor? If a highwayman ambushes me on a road by a wood, I must give him my money by force, but if I can keep it away from him am I obliged in conscience to give it up? After all, the pistol that he holds is also a power.

Let us agree then that might is not right, and that we are obliged to obey only legitimate powers. Thus we return to my original question.

## Chapter iv

### *Slavery*

SINCE no man has a natural authority over his fellow, and since strength does not confer any right, it follows that the basis remaining for all legitimate authority among men must be agreed convention.\*

If, says Grotius, an individual is able to transfer\* his liberty, and become the slave of a master, why should an entire nation not transfer its liberty and become subject to a king?\* Here we have several equivocal words that need elucidation, but let us keep to the term *transfer*. To transfer is to give or to sell. Now a man who becomes the slave of another does not give himself: he sells himself, in exchange, at the very least, for his subsistence. But in exchange for what does a nation sell itself? A king, far from providing subsistence to his subjects, takes it all from them, and as Rabelais says, a king doesn't live cheaply. So will his subjects give him their persons on condition that he will take their property also? I cannot see what they still have to keep.

It will be objected that a despot ensures civil peace for his subjects. Very well; but what do they gain thereby, if the wars that his ambition brings down on them, his insatiable greed, and the troubles inflicted by his administrators, plague them more sorely than their dissensions would? What do they gain thereby, if civil peace itself is a source of misery? Prisoners live peacefully in their dungeons; is that enough for them to feel comfortable there? The Greek captives in the cave of the

Cyclops\* lived there peacefully, while awaiting their turn to be devoured.

To say that a man gives himself for nothing is an absurd and incomprehensible statement; such an action is illegitimate and void, simply because anyone who does it is not in his right mind. To say the same about an entire people is to imagine a nation of madmen, and madness does not make rights.

Even if each person could transfer himself, he could not transfer his children; they are born men, and free; their freedom belongs to them, and nobody except them has the right to dispose of it. Until they reach the age of reason, their father can stipulate, in their name, the conditions for their conservation and well-being, but he cannot make a gift of them, irrevocably and without condition; such a gift is contrary to the purposes of nature and exceeds the rights of fatherhood. In order, then, for an arbitrary government to be legitimate, it would be necessary for the people, at every new generation, to have the power to accept it or reject it; but in that case the government would no longer be arbitrary.

To renounce our freedom is to renounce our character as men, the rights, and even the duties, of humanity. No compensation is possible for anyone who renounces everything. It is incompatible with the nature of man; to remove the will's freedom is to remove all morality from our actions. Finally, a convention is vain and contradictory if it stipulates absolute authority on one side and limitless obedience on the other. Is it not obvious that we have no obligations towards a person from whom we can demand anything, and that this condition, requiring nothing in return or exchange, is enough to render the covenant null? For what right can my slave have against me, since everything he has belongs to me? His rights being mine, a right of mine against myself is a word without a meaning.

Grotius and the others take war to be another origin of the so-called right of slavery.\* The conqueror having the right, according to them, to kill the conquered, the latter may redeem his life at the expense of his freedom; an agreement that is the more legitimate because it is to the advantage of both parties.